

RE: Supplementary Evidence – Accountability Gaps in DPIRD Animal Welfare Enforcement, FOI2025-049

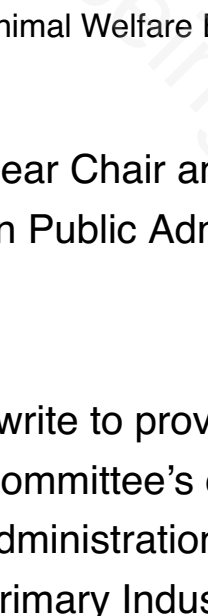
OFFICIAL

Dear Hanyu Liu,

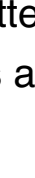
Thank you for your email, which has been given a private status.

The Committee will consider information you provide when it undertakes statutory office holder hearings, at a date to be determined.

Kind regards,



Alex Hickman | Advisory Officer (Legal)
Legislative Council Committee Office of Western Australia
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From: Hanyu <helloluna520@gmail.com>
Sent: Sunday, 26 October 2025 11:01 PM
To: Public Administration Committee
<lcpac@parliament.wa.gov.au>
Subject: Supplementary Evidence – Accountability Gaps in DPIRD Animal Welfare Enforcement, FOI2025-049

Dear Chair and Members of the Standing Committee on Public Administration,

I write to provide a supplementary update to assist the Committee’s ongoing consideration of public administration matters relating to the Department of Primary Industries and Regional Development (DPIRD).

The most recent Freedom of Information decision issued by **DPIRD** (Ref: FOI2025-049, 13 October 2025) confirms a further **accountability** vacuum in its animal welfare enforcement program, particularly the *Designated Inspector (DI)* function under the *Animal Welfare Act 2002 (WA)*.

DPIRD has now formally stated that, since 1 January 2022, it holds **no**:

- **Ministerial or Parliamentary briefings** — no reports, briefings, or correspondence regarding DI operations, data integrity, or compliance issues;
- **Communications with oversight bodies** — no correspondence or meeting records with the Office of the Auditor General or Ombudsman WA regarding the DI program or its record-keeping practices;
- **Internal compliance or risk assessments** — no audit reports, risk assessments, or risk register entries addressing possible administrative or legal failures.

This latest finding complements previous FOI outcomes already before the Committee:

- **FOI2025-008 – “Results vacuum”**: no inspection results or enforcement summaries.
- **FOI2025-017 – “Procedural vacuum”**: no standard operating procedures, internal risk reviews, or AWAC oversight records.

Taken together, these official statements demonstrate **a systemic absence of governance documentation** —no procedures, no results, no risk management, and no upward accountability—for a statutory enforcement function that exercises coercive powers.

At the same time, all formal avenues for review remain effectively closed:

- The Office of the Information Commissioner has confirmed indefinite backlogs and is itself **exempt from the FOI Act**.
- The Ombudsman WA has declined jurisdiction over the OIC and deferred consideration of DPIRD matters pending that same OIC process.

This creates a complete procedural deadlock in external oversight.

All referenced materials, including the Department’s decision letters and correspondence with oversight bodies, are publicly archived for verification at:

👉 <https://unseenbeings.org>

I respectfully submit this information for the Committee’s records, trusting it may assist future deliberations or hearings concerning the accountability of statutory office holders in Western Australia.

Yours sincerely,

Hanyu Liu
helloluna520@gmail.com
<https://unseenbeings.org>

----- Forwarded message -----
From: **Hanyu** <helloluna520@gmail.com>
Date: Sun, Oct 12, 2025 at 4:24 PM
Subject: Further evidence of regulatory gaps in animal welfare enforcement (FOI2025-017)
To: lcpac <lcpac@parliament.wa.gov.au>

Dear Chair and Members of the Standing Committee on Public Administration,

I write to provide an update to my previous correspondence (forwarded below) concerning the administrative framework governing animal welfare enforcement at the Department of Primary Industries and Regional Development (DPIRD).

Through Freedom of Information processes, DPIRD has now confirmed in writing (FOI2025-017) that it holds **no**:

- Standard Operating Procedures (SOPs) or formal guidelines for its Designated Inspectors;
- Internal risk assessments or audits concerning its acknowledged failure to collect enforcement data;
- Oversight records from the Animal Welfare Advisory Committee (AWAC).

This absence of both **foundational procedures** and **recorded outcomes** reveals a **dual vacuum** in regulatory governance. It raises serious questions about the Department’s capacity to discharge its statutory responsibilities and maintain public accountability.

All relevant correspondence and documents are publicly available at <https://unseenbeings.org>.

I respectfully invite the Committee to take this evidence into consideration as part of its ongoing oversight of public administration in Western Australia.

Yours sincerely,
Hanyu Liu
helloluna520@gmail.com
<https://unseenbeings.org>

----- Forwarded message -----
From: helloluna520 <helloluna520@gmail.com>
Date: Wed, Jun 11, 2025 1:58 AM
To: lcpac <lcpac@parliament.wa.gov.au>
Subject: Fw: [Transparency Notification] FOI2025-008 – Animal Welfare Enforcement Records Gap

Dear Public Administration Committee Secretariat,

I am writing to notify your committee of the outcome of a recent Freedom of Information (FOI) process regarding animal welfare enforcement records in Western Australia.

In June 2025, the Department of Primary Industries and Regional Development (DPIRD) formally stated—under FOI2025-008—that no records exist summarising Designated Inspector (DI) inspections, enforcement outcomes, or internal performance reviews from 2022–2025, apart from a single summary spreadsheet.

This official confirmation of a record-keeping gap in the use of expanded DI powers raises significant questions about transparency, public accountability, and the efficacy of oversight in animal welfare regulation.

For transparency and future reference, a full public archive of this FOI process—including all correspondence, the Section 26 notice, and the released document—is available here:

👉 <https://unseenbeings.org/>

I do not request specific action at this stage, but invite your committee to note this record in your ongoing public administration reviews and, if appropriate, consider further inquiry in future deliberations.

Kind regards,
Hanyu Liu
helloluna520@gmail.com
<https://unseenbeings.org/>